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Act No. 147 (S.193). An act relating to establishing a forensic facility for certain criminal justice-involved persons

Subjects: Criminal procedure; public safety; mental health; forensic facility; competency restoration

This act requires the Agency of Human Services to establish a forensic facility to house and treat certain persons who need treatment after having been charged with or convicted of certain crimes. A person would be placed in the facility if the person is found incompetent to stand trial for or not guilty by reason of insanity of a criminal offense punishable by a sentence of life in prison. The person receives competency restoration or other treatment services while at the facility and is periodically reevaluated, and the person may be released under supervision if the person is no longer dangerous or cannot be restored to competency. Until July 1, 2029, the services are provided at a correctional facility through an interim forensic and competency restoration program established through emergency rules adopted by the Agency of Human Services. The emergency rules are repealed on July 1, 2029, at which time the permanent forensic facility becomes effective and its operation becomes distinct from a correctional facility setting. Prior to that date, the act requires the Secretary to provide status reports to the Joint Justice Oversight Committee and to provide the General Assembly with a feasibility plan for the development and operation of the facility.

Multiple effective dates, beginning on July 1, 2026